

		seeking restitution]; <i>Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.</i> (2018) 29 Cal.App.5th 230, 238 [the elements to a claim for “unjust enrichment” are often “simply stated as ‘receipt of a benefit and unjust retention of the benefit at the expense of another;’” internal citation omitted]; <i>Comm. to Save Beverly Highland Homes Assoc. v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260 [moving party’s papers and evidence are strictly construed on summary judgment]; <i>Maxwell v. Colburn</i> (1980) 105 Cal.App.3d 180, 185 [moving parties’ own evidence, and inferences therefrom, may disclose triable issues]; Moving Party Separate Statement, Fact Nos. 12 and 13, and evidence cited in support thereof [escrow holder withheld \$238,135.72 to pay off the reverse mortgage obligation, rejected by the lender as insufficient, requiring plaintiff to pay an additional \$132,163.25 to resolve on or about 5-7-26]; Sinclair Decl. in support of motion, Ex. 17 [Notice of Trustee’s Sale recorded 3-17-25 by “MTC Financial dba Trustee Corps,” identifying the estimated amount of the outstanding obligation on the subject property as \$365,170.02, which is different than the total amount withheld by the escrow holder (\$238,135.72) and the amount paid by plaintiff (\$132,163.25), no explanation as to the difference; see also Defendant’s Separate Statement, Additional Fact Nos. 1-7, and evidence cited in support thereof, including Yarbrough Decl., ¶ 20, Ex. C [evidence that escrow entity received payoff demand directly from reverse mortgage lender on or about 4-22-25, not defendant (despite defendant’s attempts to obtain it), and prior to plaintiff’s payment on or about 5-7-25].) Defendant shall give notice.
9.	American Express National Bank vs. Kim 25-01482908	1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference Case Dismissed on June 9, 2026.